

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Patrick Harrison	Team: Team # 2	CCRB Case #: 201209024	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 07/07/2012 10:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/7/2014	Precinct: 77
Date/Time CV Reported Sat, 07/07/2012 11:45 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 07/13/2012 3:49 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Juan Moreno	03602	935351	PBBN
2. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Melvin Cordero	26046	950232	PBBN

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Discourtesy: Officers spoke rudely to § 87(2)(b)	A . Complainant Uncooperative
B . SGT Juan Moreno	Force: Sgt. Juan Moreno hit § 87(2)(b) against an inanimate object.	B . Complainant Uncooperative
C . SGT Juan Moreno	Abuse: Sgt. Juan Moreno threatened § 87(2)(b) with the use of force.	C . Complainant Uncooperative

Case Summary

On July 7, 2012, at 11:45 p.m., § 87(2)(b) and § 87(2)(b) called the IAB Command Center to file this complaint on behalf of § 87(2)(b) § 87(2)(b) who is the son of § 87(2)(b) and the boyfriend of § 87(2)(b) § 87(2)(b) witnessed the incident, but § 87(2)(b) did not. The case was referred to the CCRB on July 13, 2012, under IAB log 12-36732.

On July 7, 2012, at 11:00 p.m., Sgt. Juan Moreno (identified by name), PO Melvin Cordero (identified by investigation), and two unidentified officers approached § 87(2)(b) who was in his car outside § 87(2)(b) in Brooklyn, and asked him for his license and registration. § 87(2)(b) asked the officers why, and officers told § 87(2)(b) to give them his “shit” and shut the “fuck” up (**Allegation A**). § 87(2)(b) argued with the officers about whether he had been playing his music too loud and was arrested. Sgt. Moreno pushed § 87(2)(b) into a police van, causing § 87(2)(b) to hit his head on the van door, and then pushed § 87(2)(b) into several seats in the car (**Allegation B**). Sgt. Moreno then raised his fist at § 87(2)(b) as though to hit him, but did not strike him (**Allegation C**). § 87(2)(b) was charged with § 87(2)(b) § 87(2)(g).

On July 20, 2012, a call was placed to § 87(2)(b) § 87(2)(b) gave a phone statement and scheduled a CCRB interview for July 27, 2012. On July 23, 2012, § 87(2)(b) agreed to reschedule his CCRB interview for August 3, 2012 due to a schedule conflict. On August 3, 2012, § 87(2)(b) did not appear for his interview and did not call ahead to cancel. On August 3, 2012, a call was placed to § 87(2)(b) § 87(2)(b) scheduled a CCRB interview for August 10, 2012. On August 10, 2012, § 87(2)(b) did not appear for his CCRB interview and did not call ahead to cancel. On August 13, 2012, a call was placed to § 87(2)(b) No one answered, and no voicemail message could be left. On the same date, a letter was sent to § 87(2)(b) § 87(2)(b) has not contacted the CCRB since August 3, 2012, and the letter sent to him has not been returned.

On July 20, 2012, a call was placed to § 87(2)(b) No one answered, and no voicemail message could be left. On July 23, 2012, § 87(2)(b) scheduled a CCRB interview for August 3, 2012. On August 3, 2012, § 87(2)(b) did not appear for her interview and did not call ahead to cancel. On August 3, 2012, § 87(2)(b) scheduled a CCRB interview for August 10, 2012. On August 10, 2012, § 87(2)(b) did not appear for her CCRB interview and did not call ahead to cancel. On August 13, 2012, a call was placed to § 87(2)(b) No one answered, and no voicemail message could be left. Letters were sent to § 87(2)(b) on July 20, 2012, and August 13, 2012. § 87(2)(b) has not contacted the CCRB since August 3, 2012, and the letters sent to her have not been returned. According to the New York City Department of Correction Inmate Tracking System and the New York State Department of Corrections and Community Supervision Inmate Population Information Search, neither § 87(2)(b) nor § 87(2)(b) was incarcerated as of August 13, 2012. Therefore, it is recommended that **Allegations A, B, and C** be closed as **complainant uncooperative**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date